

02:00 PM

24-CIV-02662 ALEXANDER XUE VS. COSTCO WHOLESALE CORPORATION

LINE 3

ALEXANDER XUE
COSTCO WHOLESALE CORPORATION

PRO PER
ALECIA E. COTTON

DEFENDANT COSTCO WHOLESALE CORPORATION'S DEMURRER TO PLAINTIFF'S SECOND AMENDED COMPLAINT

TENTATIVE RULING:

Please refer to the tentative ruling for Line 2, which is hereby incorporated by reference and serves as the tentative ruling for Line 3.

02:00 PM

24-CIV-03420 KYNA LIM VS. CITY OF MENLO PARK

LINE 4

KYNA LIM
CITY OF MENLO PARK

PRO PER
NICHOLAS SYREN

DEFENDANT CITY OF MENLO PARK'S DEMURRER TO PLAINTIFF'S SECOND AMENDED COMPLAINT

TENTATIVE RULING:

Initially, the Court notes that Defendant has not provided the address for the hearing. Department 11 is located at 800 North Humboldt Street, San Mateo, CA 94401, Courtroom G. (See Cal. Rules of Court, rule 3.1110 [the Notice "must specify" the location of the hearing].)

The Court further notes that Plaintiff's proof of service of the opposing papers includes her declaration that she served the papers herself, which violates Code of Civil Procedure section 1013a, subdivision (1).

The Court finds that these errors caused no prejudice and/or the defects have been waived. But Plaintiff is cautioned that in the future, not to sign proofs of service herself.

Defendant's Demurrer is SUSTAINED WITHOUT LEAVE TO AMEND. Plaintiff's Request for Judicial Notice ("RJN") is discussed below.

Background

Per the allegations of the Second Amended Complaint ("SAC"), Defendant failed to maintain its tree (the "Tree") that was adjacent to her property, damaging her water and sewer lines and her foundation, resulting in economic and health-related damages. Plaintiff repeatedly reported the issues with the Tree to another city, believing it to be the responsible party. Plaintiff was redirected to Defendant in October 2023, but Defendant initially denied responsibility and told her that the Tree was not in its database. Only after Plaintiff provided mapping data did Defendant acknowledge its responsibility for the Tree and sidewalk, and order emergency removal of the Tree due to its poor structure and conflict with utilities.

Defendant demurs generally to the SAC, and to each of its causes of action.

Legal Standard

A general demurrer under Section 430.10(e) of the Code of Civil Procedure for failure to state a cause of action challenges defects that appear on the face of the pleading under attack; or from matters outside the pleading that are judicially noticeable. *Blank v. Kirwan* (1985) 39 C3d 311, 318.

"It is not necessary that the cause of action be the one intended by plaintiff. The test is whether the complaint states any valid claim entitling plaintiff to relief. Thus, plaintiff may be mistaken as to the nature of the case, or the legal theory on which plaintiff can prevail. But if the essential facts of some valid cause of action are alleged, the complaint is good against a general demurrer." Cal. Prac. Guide Civ. Pro. Before Trial Ch. 7(I)-A (citations omitted).
